

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emmitt Sklar	Team: Squad #05	CCRB Case #: 202100184	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/18/2020 7:30 AM, Friday, 12/18/2020 9:36 AM	Location of Incident: In a police vehicle; 104th Precinct stationhouse	18 Mo. SOL 6/18/2022	Precinct: Prec		
Date/Time CV Reported Thu, 01/07/2021 3:11 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 01/07/2021 3:11 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Golat	00482	950506	WARRSEC
2. POF Alyssa Krenek	16625	960523	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Genaro Barreiro	308	950050	WARRSEC
2. DT3 Ronald Scrimenti	3265	937510	104 DET
3. SGT Antwon Trent	02676	947552	104 DET
4. DT3 Donna Fogus	02142	939863	104 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Golat	Discourtesy: In a police vehicle, Detective Daniel Golat spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . DT3 Daniel Golat	Abuse: At the 104th Precinct stationhouse in Queens, Detective Daniel Golat failed to provide § 87(2)(b) with a business card.	B . Unsubstantiated
C . POF Alyssa Krenek	Abuse: At the 104th Precinct stationhouse in Queens, Police Officer Alyssa Krenek failed to provide § 87(2)(b) with a business card.	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 7, 2021, § 87(2)(b) filed this complaint on the CCRB website.

On December 18, 2020, at approximately 7:30 a.m., Police Officer Alyssa Krenek and Detectives Genaro Barreiro and Daniel Golat, all from the Staten Island Warrants Section, arrested § 87(2)(b) at Lafayette Avenue and Henderson Avenue in Staten Island. The officers lodged § 87(2)(b) in their van. While driving to the 104th Precinct stationhouse in Queens, Det. Golat allegedly told § 87(2)(b) to “shut the fuck up” (**Allegation A: Discourtesy, unsubstantiated**). Det. Golat also allegedly told § 87(2)(b) that the situation was not “that big of a fucking deal” (**Allegation A**). Upon arrival at the 104th Precinct stationhouse, at approximately 9:36 a.m., § 87(2)(b) requested a business card from Det. Barreiro, Det. Golat, and PO Krenek. Det. Barreiro provided one, but Det. Golat and PO Krenek allegedly did not (**Allegations B-C: Abuse of Authority, unsubstantiated**).

§ 87(4-b) § 87(2)(g)

The investigation did not obtain video footage in this case. The officers were not equipped with BWCs at the time of the incident.

This case was reassigned from Inv. Conor O’Shea to Inv. Sklar on July 20, 2021, after Inv. O’Shea’s resignation from the CCRB.

Findings and Recommendations

Allegation (A) Discourtesy: In a police vehicle, Detective Daniel Golat spoke discourteously to

§ 87(2)(b)

It is undisputed that Det. Barreiro, Det. Golat, and PO Krenek drove § 87(2)(b) from where they arrested him in Staten Island to the 104th Precinct stationhouse in Queens.

§ 87(2)(b) s intake complaint made no mention of any use of profanity (**Board Review 01**). However, in both his initial telephone statement (**Board Review 02**) and CCRB interview (**Board Review 03**), § 87(2)(b) consistently alleged that Det. Golat told him to “shut the fuck up” during the ride. In his telephone statement, § 87(2)(b) also alleged that Det. Golat told him he would not have a warrant at all if the situation was “that big of a fucking deal.” § 87(2)(b) did not spontaneously repeat this allegation during his sworn interview. After being questioned about it, § 87(2)(b) testified that Det. Golat may have said something was not “that fucking serious,” but he could not remember the exact context.

Det. Golat (**Board Review 04**) did not remember speaking to § 87(2)(b) in the van. He recalled that § 87(2)(b) yelled and cursed during the ride, but Det. Golat did not remember responding to him. Det. Golat would not have spoken with § 87(2)(b) because he was not in charge of § 87(2)(b) s case. Det. Barreiro (**Board Review 05**) remembered “very little” about the transport, and he had no memory of Det. Golat ever using the word “fuck.” Det. Barreiro also did not recall whether § 87(2)(b) and Det. Golat had any conversation in the van. PO Krenek (**Board Review 06**) believed that § 87(2)(b) was quiet during the ride and did not express concerns. She did not recall Det. Golat speaking to him or using the word “fuck.”

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as

unsubstantiated.

Allegation (B) Abuse of Authority: At the 104th Precinct stationhouse in Queens, Detective Daniel Golat failed to provide § 87(2)(b) with a business card.

Allegation (C) Abuse of Authority: At the 104th Precinct stationhouse in Queens, Police Officer Alyssa Krenek failed to provide § 87(2)(b) with a business card.

§ 87(2)(b)'s intake complaint and telephone statement (**Board Review 01-02**) made no reference to whether he asked Det. Golat for a business card or whether Det. Golat refused to provide one. In § 87(2)(b)'s CCRB interview (**Board Review 03**), he recounted that he asked Det. Barreiro, Det. Golat, and PO Krenek for business cards inside the stationhouse. Det. Barreiro filled out a business card and provided it to § 87(2)(b). Det. Barreiro told § 87(2)(b) that only one of the officers had to provide a business card. Det. Golat and PO Krenek never provided § 87(2)(b) with a business card.

Det. Barreiro did not remember if § 87(2)(b) asked him or any other officer to provide a business card, and he did not recall if he or his partners provided any cards to § 87(2)(b). PO Krenek recalled that § 87(2)(b) asked Det. Barreiro for a business card. She did not recall him asking her or Det. Golat for a card. Det. Golat denied that he had any interactions with § 87(2)(b) inside the stationhouse and denied that § 87(2)(b) asked him for a business card.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B-C** be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named a victim in one other allegation (**Board Review 09**):
 - § 87(2)(b)
- Det. Golat has been a member of the NYPD for nine years and has been named a subject in ten other CCRB complaints and 27 other allegations, of which one was substantiated:
 - CCRB case #201710171 involved a substantiated allegation of entry of premises against Det. Golat. The Board recommended Formalized Training, and the NYPD imposed Formalized Training.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] declined to mediate this complaint.
- As of May 28, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (**Board Review 10**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: #05

Investigator: Emmitt Sklar Emmitt Sklar September 16, 2021
Signature Print Title & Name Date

Squad Leader: Daniel Giansante IM Daniel Giansante September 16, 2021
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____